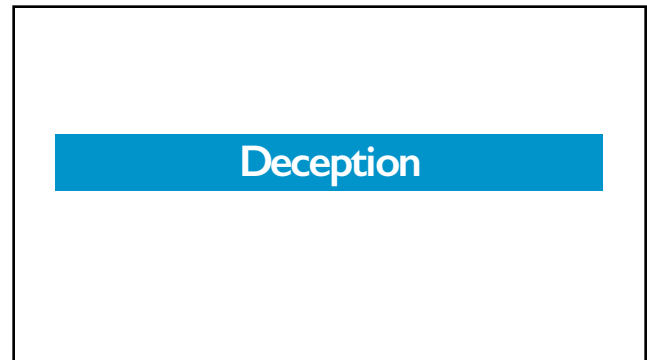




### Challenges to effective lying

3

- ▶ **Motivation** - most people will be motivated to plan for lying
- ▶ **Create a script** - most people can handle this aspect
  - ▶ Must anticipate questions
  - ▶ Sufficient detail
  - ▶ May be created from a different incident



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### Challenges to effective lying

4

**But...**

- ▶ **Withstanding probes can be difficult**
  - ▶ May have to think quickly and improvise
  - ▶ Cognitive loads get extreme—working memory limits
  - ▶ Unanticipated question strategy
- ▶ **Avoiding contradictions can be tough**
  - ▶ Inconsistency between account and evidence
  - ▶ Content complexity can get high
  - ▶ Keeping truths and lies separate
  - ▶ Working memory and cognitive overload



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## Behaviors of lying

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- ▶ Lie signs **WARNING**
- ▶ Some pop psychology texts offer descriptions of behavioral lie-signs
- ▶ Institutions and others have invested considerable sums of time, effort and money



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## Behaviors of lying

6

These pop psychology techniques claim to differentiate truth from deception using...

- **Non-verbal behavior** - changes in vocal behavior; eye movement, direction of gaze and facial movements.
- **Verbal behavior** - both spoken and written use of language emphasizing semantics, verb forms, and qualifiers



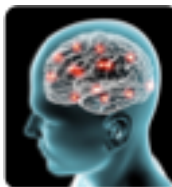
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## Objective and subjective cues

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- ▶ Evidence for human unassisted lie detection-based findings is unsupported.
- ▶ **Objective** cues (physical or actual)
- ▶ **Subjective** cues (what you think it is)



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## Support lacking for lie signs

8

- ▶ ~~There is no such thing as~~ **categorical lie behavior**
- ▶ Non-verbal behaviors are actually manifestations of arousal such as...



- Stress
- Strong emotion
- Embarrassment
- Cognitive effort
- Behavioral conditioning

Source: VRJ, 2008

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## Support lacking for lie signs

9

- ▶ Verbal behaviors considered *lie indicators* are used every day in truthful conversation
- ▶ Evidence of deception is best revealed in the **content** of disclosure during interviews.
- ▶ We want examinees to talk!



Source: Vrij, 2008

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## Liar's non-verbal behavior

10

- ▶ Reviewed 132 studies published in English

### ▶ Verbal cues

- Speech errors and hesitation, pitch, rate, latencies and pause duration & frequencies

### ▶ Visual cues

- gaze, smile, self-adapters, illustrators, hand/finger moves, leg/foot, trunk, head, shift, blink



Source: Vrij, 2007 review of studies

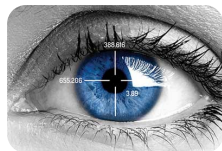
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## Add'l findings – non-verbal behavior

11

- ▶ Pupil dilation  $d = .39$
- ▶ Discrepant / ambivalent  $d = .34$
- ▶ Verbal uncertainty  $d = .30$
- ▶ Nervous or tense  $d = .27$
- ▶ Vocal tension  $d = .26$
- ▶ Chin raised  $d = .25$
- ▶ Word repetition  $d = .21$
- ▶ Lip pressing  $d = .16$
- ▶ Facial pleasantness  $d = -.12$



- ▶ Note that many of these are subjective and the effect sizes are small.
- $d$ 's of 20=small, 50=medium, 80=large (Cohen, 1977)

DePaulo et al (2003)

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## Human Lie Detector

12

- ▶ Judgements made by almost 25,000 observers
- ▶ **Average accuracy was 54%** (aka. flip a coin)
- ▶ Two possible explanations
  - ▶ Objective cues are weak – ex: small diff. high pitch voice
  - ▶ Subjective cues are wrong – ex: gaze aversion not a good cue
- ▶ Training doesn't seem to improve performance



SOURCE: BOND &amp; DEPAULO (2006)

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## Vocal cues: objectives vs. subjective

13

### VOCAL – HOW THINGS ARE SAID

- < SHOWN LESS OFTEN BY LIARS THAN TRUTHFUL
- > SHOWN MORE OFTEN BY LIARS

- NO RELATIONSHIP TO DECEPTION

Relying on vocal cues is not a good strategy.

| Vocal Cues              | Objective<br>(what happens) | Subjective<br>(what we think happens) |
|-------------------------|-----------------------------|---------------------------------------|
| <i>Hesitations</i>      | -                           | >                                     |
| Speech errors           | -                           | >                                     |
| <i>High Pitch Voice</i> | >                           | >                                     |
| Speech Rate             | -                           | -                                     |
| <i>Latency period</i>   | >                           | -                                     |
| Pause duration          | >                           | -                                     |
| <i>Pause frequency</i>  | -                           | >                                     |

SOURCE: VRU 2008

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## Visual cues: objectives vs. subjective

14

- < SHOWN LESS OFTEN BY LIARS THAN TRUTHFUL
- > MORE OFTEN
- NO RELATIONSHIP TO DECEPTION

Relying on visual cues is not a good strategy.

| Visual Cues                 | Objective<br>(what happens) | Subjective<br>(what we think happens) |
|-----------------------------|-----------------------------|---------------------------------------|
| <i>Gaze aversion</i>        | -                           | >                                     |
| Smiling                     | -                           | -                                     |
| Self-adaptor                | -                           | >                                     |
| Illustrators                | <                           | -                                     |
| <i>Hand/finger *</i>        | <                           | >                                     |
| Leg/foot *                  | <                           | >                                     |
| Trunk                       | -                           | >                                     |
| Head                        | -                           | -                                     |
| <i>Body position shifts</i> | -                           | >                                     |
| Eye blinks                  | -                           | >                                     |

SOURCE: VRU 2008

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\* Note the objective and subjective indicators are in the opposite direction.  
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## Verbal cues: objectives vs. subjective

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### VERBAL = CONTENT

- < SHOWN LESS OFTEN BY LIARS THAN TRUTHFUL
- > SHOWN MORE OFTEN BY LIARS

- NO RELATIONSHIP TO DECEPTION

Relying on verbal cues is a better strategy.

| Verbal Cues                | Objective | Subjective |
|----------------------------|-----------|------------|
| <i>Negative statements</i> | >         | -          |
| Self-references            | -         | <          |
| <i>Immediacy</i>           | <         | <          |
| Response length            | <         | -          |
| <i>Plausibility</i>        | <         | <          |
| Consistencies              | -         | <          |
| <i>Contradictions</i>      | -         | >          |

SOURCE: VRU 2008

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## Additional subjective cues

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Other research shows people associate signs of nervousness with deception.



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## Additional subjective cues

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### ► Other studies showed clothing affects suspicion

- Untidy = more suspicious
- Black clothing = more suspicious
- Less attractive face = less honest

If your next interviewee is unattractive and dressed in black, tattered clothes...

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## Post-Test Interview

## Post-Test Interview

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*We are here because you need to interview someone that failed the EyeDetect test.*

*There is an increased probability the person is **guilty** after failing the test.*

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## Interrogate or Interview

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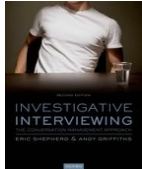


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## “Investigative Interviewing”

21



Published by Professor Eric Shepherd & Dr. Andy Griffiths

- ▶ Many ideas presented today and other related textbooks.
- ▶ Thanks to the authors for allowing us to share their ideas.
- ▶ Recommended for those looking to improve investigative interviewing skills.

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## Interview misconceptions

22

- ▶ We interview, they cooperate.
- ▶ We ask what they know, they will tell us.
- ▶ Anyone can do it.
- ▶ It's easy.
- ▶ The newbies have to do it.
- ▶ It's not important.



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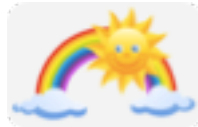
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## Interrogation myths

23

*Interrogations follow these rules*

- ▶ Get person to speak on unrelated matters
  - establish a speech "pattern"
    - ▶ Pattern of what? Truths, lies, nervousness?
- ▶ Question person about the issue.
  - ▶ Look for changes. Changes in 'what'?
- ▶ If person resists, use a confirmatory (yes/no) approach.



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## Interrogation myths

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- ▶ Accuse the person of lying.
- ▶ If the person resists, use persuasive conversation.
- ▶ Get person to admit something and they will become compliant.
- ▶ Follow the checklist and the person will confess.
- ▶ If the person doesn't confess, YOU did it wrong.



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## Interrogation problems

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- ▶ Rigid agenda
- ▶ Suggestive questioning
- ▶ Over-talking
- ▶ Interrupting
- ▶ Increased pressure leads to frustration
- ▶ Frustration leads to...



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## Interrogation problems

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- ▶ **Frustration** leads to increases in counter-productive behavior:
- ▶ Person goes silent.
- ▶ Interviewer gets angry, demeaning, raise voice.
- ▶ Person gets more quiet.
- ▶ Interviewer gets more frustrated.



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## Rush to get it wrong

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- ▶ **Pressure to get confession** – too much pressure, too little evidence, supervisory staff shortage, limited time and restricted budget
- ▶ Results in short-cuts, evading the complexities and details.
  - Premature case closures
  - Failure to revise case theory
  - Failure to consider alternative hypotheses
  - Confirmation bias – cling to material supporting your theory



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## Conversation basics

## What is conversation?

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French *conversari* (Latin) - to keep company with another

**Whole body medium of relating with another:**

- ▶ Verbal channel – just the words
- ▶ Non-verbal includes vocal "paralanguage"



**Tone of voice (quality & manner) expresses**

- ▶ Actual or desired relationship (up-down versus across, i.e. equals)
- ▶ Thoughts and ideas stressing
- ▶ Attitudes, emotions and stress

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## How conversation works

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### ▶ Rule-bound

- ▶ Co-operate with one another
- ▶ Be responsive
- ▶ Once started, continue until proper close
- ▶ Close / depart courteously

### ▶ Dynamics

- ▶ Turn-taking - remember reciprocity later
- ▶ Talking time - not always equal
- ▶ Topic selection and progression

**This is where you have to excel.**



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## Conversation goals

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- ▶ People converse to achieve goals
  - ▶ Ex: simple greeting signals recognition or acknowledgement of another
- ▶ Many convo's are practical - **to get info**
- ▶ It is often inherently anxiety-provoking
  - ▶ Course, content & direction may be unpredictable
  - ▶ Control reduces unpredictability
  - ▶ Other person draws conclusions from your behavior, affecting their participation and behavior



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## Conversation killers

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### ▶ Dominant talk

- ▶ Interviewee won't feel like an equal.
- ▶ Interviewer does most of the talking.
- ▶ Interviewer follows an agenda or checklist.



### ▶ Limit the other person's ability to contribute (a role)

- ▶ Make unproven assertions - "You have met with organized crime members."
- ▶ Rhetorical questions - "How did you get involved in this?" before admission is made
- ▶ Asking constraining Q's - "You met with them, right?"
- ▶ Not giving time to think (filling the pause) - ask a question, signal switch of talking turn, fill pause before answer

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## More alienating behaviors

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- ▶ **Disruptive talk** (interviewer does it)
  - You won't learn anything while talking.
  - Interruptions breaks up mental and verbal flow.
  - Rapid topic changing.
- ▶ **Disruptive listening** (interviewer does it)
  - Not paying attention - how do you feel when this happens
  - Assuming – hear what you want to hear.
  - Confirmation bias through 'word picking' or statement picking
- ▶ **Abrupt closing**
  - Thoughtful "That was helpful, I appreciate your efforts."
  - Thoughtless "We'll be in touch if I need you."



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## Fostering conversation

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It's not just what you say, but also what you do.

- ▶ Sincere interested attitude
- ▶ Inviting posture - attentive lean, eye contact
- ▶ Conversation-provoking behaviors
  - nods, uh huh's
- ▶ Guiding the conversation in a concerned manner:



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## Interviewing

## Thoughts on interviewing

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An interview is 'a mechanism directed towards the 'construction of proof'' (Baldwin, p. 327)

The objective of interviews is not to get at the slippery concept of truth but to build an evidential case or establish that there is no case.

- ▶ Why do you interview?
- ▶ Are you always seeking the truth? No. Get info.
- ▶ Do you want information to build a case? Yes.

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## Characteristics of good interviewers

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- ▶ Able (and driven) to organize, plan & prepare
- ▶ Able to thoughtfully listen and question
- ▶ Flexible and open-minded
- ▶ Shows compassion, empathy and respect
- ▶ Calm, courteous and patient
- ▶ Uses a humane approach versus authoritarian
- ▶ Witness, suspect, complainant, and victims reported similar beliefs.
- ▶ All want to be treated fairly.
- ▶ So how do we "get some of this stuff?"



Source: Bull, 2013

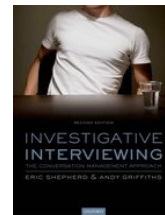
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## New approach: Conversation Management

38

Published by Professor Eric Shepherd &amp; Andy Griffiths



### Investigative interviews are difficult conversations

- ▶ HR managers, doctors, therapists, and police tend to have difficult conversations.

### But why are these difficult?

- Outcomes matter to those involved.
- Talking about important issues.
- Circumstances are psychologically threatening.
- People feel vulnerable and stressed.
- Self-esteem and self-preservation are at stake.

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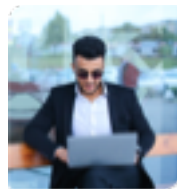
## Difficult conversations

39

**Interviewees** are frequently resistant because it's a psychologically challenging and stressful situation.

They feel vulnerable.

Their self-esteem is at risk.



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## Difficult conversations

40

- ▶ **Interviewees** feel that outcomes are perceived or pitched as uncertain or hopeless
- ▶ Interviewees feel strongly about the subject matter... whether innocent or guilty.
- ▶ Interviewees feel strongly about the interviewer... especially if negative.



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## Difficult conversations

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### Interviewer

- ▶ Professionals want maximum disclosure of details.
- ▶ Professionals manage conversations to create a productive *working relationship*.
- ▶ Immature interviewers seek confessions.



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## Forming conversational relationships

42

Interviews are about getting as much detail as possible.



- ▶ Working relationship building strategies include:
  - Both parties acknowledge the aims and goals of the interview
  - Recognize the potential barriers
  - Realistic expectations of the subject's memory
  - Build and maintain **rapport**

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## Rapport building – a good idea

43

Establishing **rapport is critical** in contributing to effective encounters between human beings. (Bernieri et al., 1994)

When interviewees sense a **harmonious relationship** with their interviewers, they tend to talk more openly. (St. Ives, 2006)



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## Rule 1: Open-minded & objective

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- ▶ Don't form an opinion ahead of time. First impressions matter!

**Pygmalion or Rosenthal effect** — self-fulfilling prophesy

- ▶ Your attitude can effect your behavior and your perception.
- ▶ Your behavior can effect their attitude and perception.
- ▶ Their attitude can effect their behavior and YOUR perception.



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## Rule 1: Open-minded & objective

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### Stereotypes

- ▶ Bias our perception and influence inferences.
- ▶ Can lead to self-fulfilling prophesy.
- ▶ Being aware of them can combat their negative effect. But this takes honesty.



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## Rule 1: Open-minded & objective

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- ▶ Prejudices induce bias that affect perception, attitude, and behavior.
- ▶ "Investigator bias led to increased use of minimization tactics and thereby increased the likelihood of false confessions..." (Narchet, Meissner & Russano (2010))
- ▶ Studies show you are less likely to give the benefit of doubt to people with criminal records, are more likely to focus on a confession, and are less likely to focus on searching for truth.

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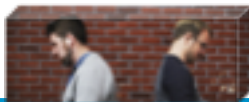
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## Rule 1: Open-minded & objective

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### Your focus affects how you conduct the interview

- ▶ Should you presume everyone is innocent? Guilty? Not
- ▶ Should you focus on a confession or eliminating the person from suspicion?
- ▶ Research shows when a person is presumed guilty, you are likely to:
  - ▶ Use guilt-presumptive questioning
  - ▶ Use techniques and pressure to obtain confession
  - ▶ Make innocent person more likely to display anxious/defensive behavior



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## Rule 1: Open-minded & objective

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Pressure to solve a problem can wreak havoc on objectivity.



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## Rule 2: Develop & maintain rapport

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### Building rapport is essential, important, and critical

#### ► Developing rapport requires things.

- ❑ Pay attention to the other person's needs and concerns.
- ❑ Take time to create an atmosphere of respect.
- ❑ Remain sensitive to the other person's feelings and beliefs.



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## Rule 2: Develop & maintain rapport

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### Without rapport your interview is doomed



- It is the foundation upon which the interview bears out.
- You can be knowledgeable on a subject— but without rapport the interview will fail.
- You can have no technical knowledge— but with rapport conduct an interview.

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## Rule 2: Develop & maintain rapport

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#### ► **First contact:** be visual and shake hands (universal sign of peace).

#### ► **Respect personal space**

- Don't crowd the person. That appears overbearing and intrusive.
- Don't stay too far away. That appears impersonal, a lack of intimacy.
- Avoid items like a desk or table between you and the person. That appears impersonal.
- Preferred to sit at an angle and not face-to-face.



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## Rule 2: Develop & maintain rapport

52

### How you are perceived affects the person's attitude towards you

- Your demeanor, actions, and expressions convey messages, so be alert.

#### Be empathetic

- No empathy means no rapport.
- No rapport means no interview.
- Calm low voice displays empathy.

How would you feel if you were in their shoes?



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## Obstructions to building rapport

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- ▶ Building rapport can be difficult when you don't "like" the other person.
- ▶ Building rapport can be difficult when you think you "won't like" the other person.
- ▶ Building rapport can be seen as being "soft" by co-workers.
- ▶ Building rapport can be seen as time-consuming.

Remember – without rapport, there is no effective communication and no interview.



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## Rule 3: Pay attention, maintain vigilance

54



- ▶ Probably one of the most difficult tasks to do well.
- ▶ Maintaining a role of facilitator while paying attention is a daunting task.
- ▶ Not interrupting is a challenge for many of us.
- ▶ "The one who listens has the advantage, the one who talks gives it away."\*

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## Rule 3: Pay attention, maintain vigilance

55

### Active Listening - not the same as hearing

- ▶ Requires attention, focus and concentration.
- ▶ Distractions disrupt active listening.
- ▶ Primary components.
  - ▶ **Encourage** the person to talk without interrupting. (head nods, "OK", "hmm")
  - ▶ **Paraphrasing** – "If I heard you right, ...": reflecting "So that made you angry?"; echo probe repeat the last words or ideas.
- ▶ Use appropriate silence to stimulate more talk
- ▶ No interrupting!



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## Rule 4: Get/keep professional attitude

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In general, investigators find it easier to assume guilt and then interrogate for a confession.

### Often looks like this

- ▶ Accuse the person
- ▶ Tell the person you have evidence (real, inferred or manufactured).
- ▶ Ask the person to confirm the allegations.



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## Rule 4: Get/keep professional attitude

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**When person denies or is silent, interviewers tend to ratchet it up.**

- ▶ Make stronger assertions of guilt
- ▶ Make stronger accusations
- ▶ Repeated or more aggressive questions

**Interview degenerates to dog-chases-tail scenario.**

- ▶ Rapport is gone.
- ▶ No more information gathered to check out.
- ▶ Unless person confesses, the rest is likely an exercise in futility.

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## Rule 4: Get/keep professional attitude

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**How you were trained can affect how you are re-trained**

- ▶ Cognitive dissonance can preclude attitude shift, which restricts behavior change.
- ▶ Only you can decide if you are willing to change your attitude.
- ▶ Institutional pressures, peer-pressure, cognitive dissonance may be the enemy of change.



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## Rule 4: Get/keep professional attitude

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### POLICE FOCUS

**Impediments to displaying a professional attitude**

- ▶ Macho approach – displaying aggression, impatience, sarcasm.

- ▶ Them vs. us mindset.
- ▶ Good cop / bad cop
- ▶ An expectation to submit to your "authority"
- ▶ Locus of control removed from person - reactance is likely to set in.



*There is a huge difference between authoritarianism and being an authority.*

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## Rule 5: Appropriate conclusion

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**The appropriate conclusion may be the beginning not the end**

- ▶ Conclusions often neglected. "We'll be in touch."
- ▶ At the end of the interview, review whether you achieved the objectives.
  - ▶ If yes, thank the person; show sincere appreciation.
  - ▶ If no, leave the door open for follow-up.



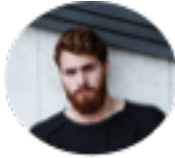
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## Rule 5: Appropriate conclusion

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The interview is not the end of the investigation.



- ▶ Even if you got a confession, you still have to check it out.
- ▶ What did you learn during the interview?
- ▶ What follow-up is needed?

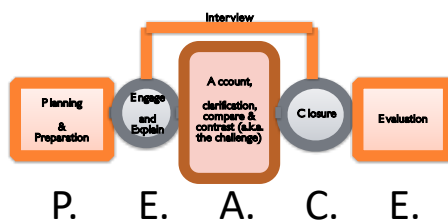
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## Conversation management

## CONVERSATION MANAGEMENT SEQUENCE

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## Planning and preparing

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**Planning** - process to get ready for the interview

- ▶ Understand purpose of the interview
- ▶ Establish aims or objectives for the interview
  - ▶ Develop a route map for the interview
- ▶ Analyze report, score, other data and information
- ▶ Understand the person you will interview: pre-employment, ongoing, LEPET, PCSOT



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## Planning and preparing

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**Preparation** – physical needs prior to the interview

- ▶ Location of interview
- ▶ Environment
- ▶ Logistics - note taking, recording
- ▶ Ourselves
- ▶ Seating arrangements
- ▶ Bathroom break
- ▶ Hunger/thirst



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## Engage and explain

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**Starts from initial contact before the interview**

- ▶ How are the person is treated from the time they enter the building
- ▶ By you and others in your office

**Reinforced at the outset of the interview**

- ▶ Warm handshake and introduction
- ▶ Ask preferred name
- ▶ Tell them what to call you

**Maintained during the interview**



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## Explain (builds rapport)

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▶ **Reason for the interview**

▶ **Overview** – issues (R1 or R2)

▶ **Routines** – the “mechanics”

▶ **Expectations (contract)** – for all parties

- ▶ Examinee - agree to tell truth, disclose detail, not rush, not interrupt, ask questions
- ▶ Interviewer agrees to not rush, give time to answer, not interrupt, may slow down, may clarify, etc.
- ▶ Both agree that clarification may be necessary
- ▶ Not intended to imply lying



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## Explain - expectations cont.

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▶ Vital conversation management tool

**Expectations** = “we” will work together

- ▶ It's about detail.
- ▶ Take your time, there's no rush.
- ▶ Think before you speak, think after.
- ▶ I'll need to stop you from time to time.
- ▶ Always check back = make sure interviewee understands
- ▶ What do I mean when I say... ?



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## Account – clarify, compare & contrast

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Account = interviewee's version of the events

### Steps include

- ▶ Examinee gives a free narrative
- ▶ Clarify or redirect account to matters you need to know about.
- ▶ Challenge any anomalies, inconsistencies and contradictions by asking for clarification.
- ▶ Give latitude if possible, but keep control.



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## Account – clarify, compare & contrast

70

### Interviewer's tasks during the account

- ▶ Listening skills
- ▶ Look for anomalies (implausible, unbelievable)
- ▶ Verbal and non-verbal deception
- ▶ Questioning strategies
- ▶ Liar strategies (examinee says machine broken)
- ▶ And much more



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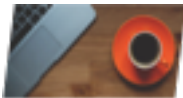
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## Talking and listening

71

### Interviewer should remember...

- ▶ Pitching questions appropriately
  - ▶ Interviewees disclose to maximize social desirability.
  - ▶ Leave the listener with a positive view of him/herself.
    - ▶ But, there are some people that don't care... too busy, emotionally blunt, psychopath or sociopath
- ▶ The degree of difficulty of conversation affects the disclosure.
- ▶ The interviewee is not in control of the direction of the conversation.
- ▶ Try to empower the interviewee if possible. (equal treatment)



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## Power(ful) People

72

- ▶ If the interviewer is a stereotypical powerful person: dominant and self-centered...
- ▶ Interviewee becomes subservient, monitors their own feedback, reacts, and is sensitive to feedback.
- ▶ Interviewee's expectations will cause predisposition to inner-editing.
- ▶ Encourages a "just the facts ma'am" strategy
- ▶ **This is the worst way to get information.**



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## Power(ful) People

73

Interviewee avoids negative perceptions by assuming...

- ▶ Powerful person already knows the answer
- ▶ PP expects only an answer
- ▶ PP monopolizes the talking time
- ▶ PP controls the content/direction of discussion
- ▶ PP pose questions for narrow answers (closed, leading, forced choice)



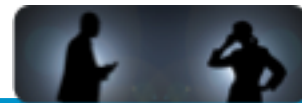
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## Just the facts, ma'am

74

- ▶ Powerful person is happy to get answers they want.
- ▶ PP rewards verbally and non-verbal feedback.
- ▶ PP takes charge—likely reducing the length of the interview.
- ▶ Decreases the likelihood of anomalies.
- ▶ Increases the odds you will chase your tail.
- ▶ Increases odds you will fill in the gaps which may lead to incorrect conclusions.



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## Account problems

75

Tool for identifying potential warning signs (Shepherd & Griffiths)

- ▶ Account problems
- ▶ Sense problems
- ▶ Struggling to give detail
- ▶ Evasion
- ▶ Sabotaging behavior
- ▶ Significant expressive behavior



On their own, none of these things mean anything. These are clues to possible anomalies in a statement that may require follow-up.

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## Account problems (assess)

76

- ▶ Thin account
- ▶ Missing detail
- ▶ Gaps
- ▶ Sidestepping
- ▶ Contradictions
- ▶ Silent encounters
- ▶ Statement evidence inconsistency
- ▶ Not a free narrative



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## Sense problems (assess)

77

### Big 3 Problems with the liar's account

- ▶ Improbable - not likely to have happened
- ▶ Implausible - not realistic, hard to believe
- ▶ Unreasonable - not sensible or appropriate



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## Struggling to give detail (assess)

78

### When probed, the interviewee

- ▶ Refuses to add to original story
- ▶ Struggles to provide additional detail
- ▶ Repeats minimal disclosure
- ▶ Concedes inability to add detail

### Interviewer ask yourself why?



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## Evasive (assess)

79

### When probed, the interviewee

- ▶ Attempts to change the subject
- ▶ Answers a question with a question
- ▶ Blanks on an echo-probe
- ▶ Interviewee uses qualifiers "not really" or "I don't think so"
- ▶ Gives measured responses — you have to drag it out word by word
- ▶ Sidesteps a definitive answer - "Not really" or "Sort of" or "I guess"



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## Sabotaging behaviors (assess)

80

### When probed, the interviewee

- ▶ Argues
- ▶ Displays anger
- ▶ Is abusive
- ▶ Threatens
- ▶ Curses
- ▶ Refuses to co-operate
- ▶ Refuses to be helped
- ▶ Refuses common courtesies



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## Significant expressive behavior (assess)

81



### When probed, the interviewee

- ▶ Shows marked physiological changes
- ▶ Increased pitch changes
- ▶ Increase in answering pause duration
- ▶ Increased latency to answer
- ▶ Is it feigned? Turned on/off.

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## Changes in baseline behavior

82

- ▶ Changes from the interviewee's baseline verbal and non-verbal behavior doesn't necessarily indicate guilt.

▶ **It is an indicator of arousal, NOT lies.**  
Impedes information flow.

- ▶ Pay attention to changes from baseline.

- ▶ Increased arousal can lead to decreased disclosure.
- ▶ Attempt to diffuse the arousal.
- ▶ Make an effort at showing you tried to diffuse it.
- ▶ Be aware of 'feigned arousal' as sabotaging behavior



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## Explicit and implicit cues

83

### Improperly trained interviewer

- ▶ **Explicit cues** — behavioral, vocal, verbal and non-verbal cues that the interviewer says and thinks s/he uses to determine if someone is lying; cause increased cognitive load and reduce effectiveness
- ▶ **Implicit cues** — cues that interviewers intuitively rely on (ex: interviewee's ambivalence and incoherence) and remember, we're 54% accurate

- ▶ *Implicit are generally better indicators*



Source: Hartwig &amp; Bond

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## Implications

84

- ▶ Offers insight on why lie catchers fail — weak objective cue hypothesis.
- ▶ Sheds doubt on historic recommendations for improvement — incorrect principle are taught
- ▶ Past focus had been on correcting cues to look for — but this may not be helpful because the right cues are weak, scarce
- ▶ Research says self reports do not offer insight into true cue utilization.



Source: Hartwig &amp; Bond, 2011

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## Implications

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- ▶ In general, observers do not actually rely on explicit (wrong) cues.
- ▶ Prescriptively, the best way to improve interviewer judgment is to increase cognitive load in the interviewee, which will result in the manifestation of the Big 3 issues, which are more diagnostic.



Source: Hartwig &amp; Bond, 2011

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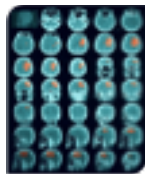
## Cognitive Load

## Cognitive load imposed

87

### Lying is more cognitively demanding

- ▶ Liar must create a plausible story that is in line with what is (will be) known
- ▶ Liar must recall the story and stay factually consistent throughout the interview.
- ▶ Liar is less likely to take their credibility for granted, so they self monitor (move less)
- ▶ Monitor the investigator for feedback and signs
- ▶ Suppress the truth while role-playing lines



Source: Vrij et al. 2013

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## Approaches to cognitive lie detection

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### Increase opportunities to manifest valid cues

- 1) Question strategies
- 2) Reverse-order
- 3) Maintain eye contact
- 4) Strategic use of evidence



Source: Vrij et al. 2013

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## Approach

89

### One Improved Question Strategies

- ▶ Unanticipated questions - time & physical space questions are good



Source: Vrij et al 2013

- ▶ "What time did you get to the restaurant?"
- ▶ "Who sat where, how, and what order?"
- ▶ "Draw me a map of the inside of the restaurant?"
- ▶ Asking the question in a different way may elicit different answers.

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## Approach

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### Two Study on reverse order recall

- ▶ Experiment 1: looked for behavioral differences between liars and truth tellers when interviewees tell the story in chronological order vs. reverse order
- ▶ Experiment 2: whether observers were better able to identify liars when watching interviewees tell story in chronological order vs. reverse order



Source: Vrij et al 2008 and LAW AND HUMAN BEHAVIOR (2008) 32:253-265 (2)

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## Reverse Order study

91

### Study examined cues associated with cognitive load

- ▶ Sensory - see, hear, touch, smell, taste
- ▶ Context - order, time and space
- ▶ Cognitive operations - thoughts and reasoning statements
- ▶ Vocal - pauses, fillers (uh), speech errors, slow speech
- ▶ Visual - decrease in body movement such as gestures, hand/finger movements, eye blinks, leg and foot movements, and chair swiveling.
- ▶ Predicted that liars would show fewer and particularly in the reverse order condition
- ▶ Also looked at gaze aversion and self-adaptors (scratching the head, wrists etc.) - found they did not differ between groups.

Source: Vrij et al 2008 and LAW AND HUMAN BEHAVIOR (2008) 32:253-265 (2)

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## Reverse Order study

92

### Findings—Experiment 1 (first-hand/interviewer)



- ▶ Liars displayed more signs of cognitive load particularly in Reverse Order
- ▶ Reverse order: liars displayed fewer sensory and contextual details and more cognitive operation descriptions (problems with thoughts and reasoning)
- ▶ Reverse order: liars had more hesitations, spoke with a slower speech rate, and made more speech errors

Source: Vrij et al 2008 and LAW AND HUMAN BEHAVIOR (2008) 32:253-265 (2)

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## Reverse Order study

93

### Findings—Experiment 2 (observer)

- ▶ Found reverse order facilitates lie detection
- ▶ Using a dichotomous truth / lie judgment and police observers:
- ▶ Reverse order 60% correct, chronological order 42%
- ▶ Liars gave the impression of having to think harder
- ▶ Liars also gave the impression of being more nervous than truth tellers only in the Reverse Order condition.



Source: Vrij et al. (2008) and LAMOND & LUBBERACK (2008) 32753-265 (7)  
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## Maintain eye contact

94

### Three "Look into my eyes" study

Examined several verbal and non-verbal cues associated with cognitive load.

- ▶ Verbal, context, cognitive operations, vocal, and visual
- ▶ Predicted that liars would show fewer cues while looking directly into the eyes of the interviewer
- ▶ Particular attention paid to eye contact condition



Source: Vrij et al. (2011) and "Look Into My Eyes" Psychology Crime & Law 16, 377-388  
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## Maintain eye contact

95

### Findings Experiment 1

- ▶ Liars - fewer sensory / temporal details (context details)
- ▶ Fewer hesitations (opposite of normal)
- ▶ Slower speech
- ▶ Increased finger/hand movement (opposite)
- ▶ Increased eye blinks (opposite)
- ▶ Increase tenseness not cognitive load



Results were inconsistent with published scientific studies

Source: Vrij et al. (2011) and "Look Into My Eyes" Psychology Crime & Law 16, 377-388  
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## Look Into My Eyes study

96

### Findings Experiment 2

- ▶ Observers watched videos of the interviews and were told to decide if interviewee was lying or telling truth.
- ▶ Takeaway: don't stare at the interviewee

Maintaining Eye Contact and Deception

Table 3  
Lie Accuracy Scores as a Function of Eye Contact and Modality

|             |                | Contact | Control | F(1,44) | eta <sup>2</sup> | d     |
|-------------|----------------|---------|---------|---------|------------------|-------|
| Video-Audio | Lie accuracy   | .41     | .20     | .65     | .22              | 1.80  |
|             | Truth accuracy | .59     | .19     | .55     | .19              | .61   |
| Audio       | Lie Accuracy   | .53     | .17     | .44     | .17              | 4.97* |
|             | Truth Accuracy | .55     | .17     | .56     | .19              | .12   |

\* p < .05

\*\* p < .01

Chance is defined at 50%

Source: Vrij et al. (2011) and "Look Into My Eyes" Psychology Crime & Law 16, 377-388  
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## Big Three reminder

97

### Cues

- ▶ Lack of details
- ▶ Implausible answers
- ▶ Inconsistent answers

Source: Vrij (2014)



Let's review "Inconsistency" because it's vital in the strategic use of evidence.

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## Statement inconsistency

98

### Definition of 4 types

- ▶ **Within-Statement Consistency** - detail inconsistency within same statement. Ex: It happened A, then C, then B. Not uncommon.
- ▶ **Between-Statement Consistency** - between statements made by the same person. Ex. Tell story twice but time lapses in between. Not uncommon.
- ▶ **Within-Group Consistency** - between statements made by different people. Ex. Two people have different account. Not uncommon.
- ▶ **Statement-Evidence Consistency** - EST - between persons' statement and other pieces of evidence or known information. (S.U.E.)

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## Consistency and deception

99

- ▶ For **Within-Statement**, **Between-Statement** and **Within-Group** consistency, most studies have found that adults that are lying display greater consistency.
- ▶ Repeat Strategy: liars say the same thing over and over because of memorization
- ▶ Reconstruct Strategy: truth tellers add detail as the story is re-told



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## Consistency and deception

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- ▶ With the **Statement-Evidence** consistency, liars statements are less consistent with evidence or known information.
- ▶ Studies provide little support for the common belief that changing the story is associated with lying!



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## Use of evidence

101

- ▶ Historically, police disclose evidence at the onset of the interview (early).
- ▶ Truthful will say "yes, that account is correct."
- ▶ Good liars will make their initial account match the evidence revealed.



Source: Hartwig et al 2006

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## Strategic Use of Evidence

102

Technique in which the interviewer discloses evidence or knowledge in a strategic manner during the course of the interview.



Source: Hartwig et al 2006

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## Strategic use of evidence

103

- ▶ Police trainees (N=82) trained in SUE or control
- ▶ Early: Untrained interviewers disclose evidence first.
- ▶ Late: Trained interviewers ask for free narrative first.



- ▶ Accuracy: trained - 85% / untrained 56%
- ▶ SUE teaches to hold back evidence and ask specific questions about it.
- ▶ Liars give statements less consistent with evidence.

Source: Hartwig et al 2006

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## Strategic use of evidence

104

### Metrics of Detection (Hartwig study)

- ▶ Interviews were transcribed and analyzed in 4 steps
  - ▶ Step 1 - how much evidence each interrogator disclosed before interviewee was asked for free narrative
  - ▶ Step 2 - did interrogators question and disclose evidence strategically
  - ▶ Step 3 - during free narrative, did the interviewee disclose evidence-related info
  - ▶ Step 4 - recorded the degree of statement-evidence consistency



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## Strategic use of evidence

105

### Findings (Hartwig study)

- ▶ Step 1 – untrained interrogators “spilled the beans” (evidence) more often
- ▶ Step 2 – trained interrogators used strategic questions / disclosure
- ▶ Step 3 – truth tellers mentioned evidence-related information in their free recall to a significantly larger extent than liars
- ▶ Step 4 – persons interviewed by trained interviewers had more evidence-statement inconsistency



Liars were significantly more inconsistent with evidence overall.

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## Strategic use of evidence

106

### Results of study

- ▶ Trained interviewers accuracy - 85.4%
  - ▶ TN 85.0% and TP 85.7%
- ▶ Untrained interviewers - 56.1%
  - ▶ TN 57.1% and TP 55.0%



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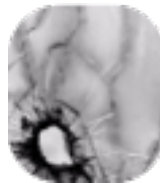
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## Strategic use of evidence

107

### Exciting new study (Tekin et al 2015)

- ▶ Strategic interview using S.U.E. N=90
- ▶ Used S.U.E. to influence the interviewee's perception of the amount of evidence.
- ▶ S.U.E. – Confrontation
  - Confronts interviewee with statement-evidence inconsistency after free narrative.
  - Generated more statement-evidence inconsistency than early disclosure or no disclosure.
  - Resulted in more self-incriminating admissions



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## Other 'bad' strategies

108

**Prisoner's dilemma** – two people each have two options whose outcome depends on the simultaneous choice made by the other such as two suspects separately deciding whether to confess to a crime. Best option is to confess. Problem: false confessions.

**False Evidence Ploy** – state that evidence exists that really exist (i.e. we have a video with you on it)

What if the smart interviewee asks to see the evidence?  
Will your organization allow the interviewer to lie?

**Bluff** – imply that evidence exists but it doesn't (i.e. we are for prints right now); what if the interviewer is wrong?

**Compliance**: prone to disproportionately increase false confessions (and true confessions)



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## Active Listening

### Active listening is work

110

- ▶ **Active listening requires authentic listening** and only comes from true interest and curiosity in what is said and shared.
- ▶ What is said, skipped or anomalous or inconsistent.
- ▶ What is said or not said (Big 3)
  - ▶ How it is said
    - ▶ Mental state
    - ▶ Emotional state
    - ▶ Physical state
- ▶ What has changed, when it is said



*Requires that the interviewer listens intently – this is hard to do!*

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### Auditory cues

111

- ▶ What is said vs what is not said
- ▶ Less immediate - "I did not have sex with that woman"
- ▶ Is the account implausible?
- ▶ Does the interviewee pause to establish eye contact with the interviewer after stating something (to check the interviewer's reaction to the account)?
- ▶ Tone of voice - changes in arousal
  - ▶ Pitch (frequency) - difficult to detect but valid indicator
  - ▶ Pause duration increased
  - ▶ Latency increased
  - ▶ Response length shortened
- ▶ But these are **not** necessarily lie cues.



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### Active listening benefits

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- ▶ Truthful are more willing to disclose, providing more details to follow-up.
- ▶ Close the power gap for the truthful – they feel more at ease.
- ▶ Deceptive person notices you are paying attention... this raises their concern to edit disclosure, and editing disclosure heightens cues, which increase their cognitive load and might increase error rate.



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## Questioning

### Questioning

114



Questioning is stressful for both parties

#### We will discuss

1. Are you prepared?
2. Manage key third parties
3. Location, timing, duration
4. Other interfering factors

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### Are you prepared?

115

- ▶ Do you have the necessary knowledge, understanding, skills, attitudes, and behaviors?
- ▶ Psychological contrast = factors creating a barrier between you and the interviewee
  - ▶ Is the interviewer able to be objective?
  - ▶ Is the interviewee able to be objective?
  - ▶ Do you have enough information to conduct the interview?



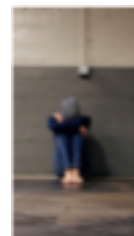
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### Are you prepared?

116

- ▶ Compatibility
  - ▶ Age difference
  - ▶ Gender biases
  - ▶ Culture and ethnicity – especially for taboo matters
- ▶ Interviewer appearance – if there are formality differences, adjust
  - ▶ Remove jacket or tie
  - ▶ Put on a sport coat
  - ▶ Don't wear obviously expensive or ostentatious clothes or jewelry



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## Second interviewer

117

### Potential loss of control of the circumstances and behavior

#### Critical factors

- ▶ Loss of control over the 2nd interviewer
- ▶ Worry of potential loss of control over 2nd interviewer
- ▶ Unnecessary distractions caused by 2nd interviewer
- ▶ Psychological pressure - perception of "2 against 1"
  - ▶ Loss of comfort for interviewee
- ▶ The working relationship can be ruined by a third wheel phenomenon.



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## Language interpreter

118

#### Not an intermediary

- ▶ May ask you clarification questions.
- ▶ May alert you there is a problem.
- ▶ May not further explain question to subject.
- ▶ May not further explain answer to you.

#### Suitability

- ▶ Appropriate language match
- ▶ Qualifications - seek qualified interpreters
- ▶ Experience: police and non-police
- ▶ Potential barriers = psychological contrast
- ▶ Same as between you and subject
- ▶ Friends or family? Probably not the best choice.



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## Interview location

119

#### Witness (victim)

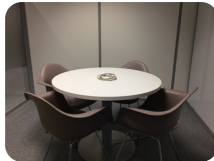
- ▶ Vulnerable? Intimidated? Special care interviewing?
- ▶ Tactical decision-making
- ▶ Resource constraints
- ▶ Recording capabilities?

#### Suspect

- ▶ Designated police station (use recording)
- ▶ Alternative location? Is it reasonable?

#### Applicant or current employee

- ▶ Designated testing location
- ▶ Not an interrogation room, if possible.
- ▶ Open, inviting room is best



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## Timing

120

#### Physical and psychological realities – biological clock

- ▶ Less efficient from 12 a.m. to 8 a.m.
- ▶ Progressively less efficient mid-evening onwards
- ▶ Mid-morning to early evening is optimum

#### Additional considerations

- ▶ Meal times
- ▶ Religious observance
- ▶ Time of medication

#### Urgent interviewing

- ▶ Sometime you have to just do it.



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## Duration

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### Active listening in everyday conversation

- ▶ Most people don't generally do it.

### Paying attention in interviews

- ▶ Mandatory or rush to get it wrong
- ▶ Not everyday events.
- ▶ May have significant personal implications for parties involved.

### Those who struggle more

- ▶ Interviewers under pressure
- ▶ Interviewees under pressure

### 40-minute span

- ▶ Time capacity for most people to pay attention and concentrate, including interviewer.
- ▶ Bathroom breaks
- ▶ Restore mentally - especially YOURs and physiologically
- ▶ To assess interview so far

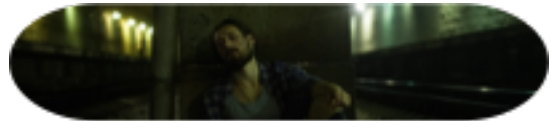
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## Factors affecting attention and mental performance

122

- ▶ Sufficient sleep
- ▶ Physical fatigue
- ▶ Low blood sugar
- ▶ Dehydration
- ▶ Alcohol/drugs ingested
- ▶ Maintenance meds
- ▶ Age
- ▶ IQ - mental limitations



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## Factors affecting attention and mental performance

123

### Nicotine addiction

### Emotional distractions

- ▶ Shame, guilt, embarrassment
- ▶ Excessive arousal
- ▶ Anxiety, fear, apprehension
- ▶ Depressed mood



**Suggestibility or compliance behavior** – interviewee is willing to along because they might have done it or they go along even though they know they didn't do it

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## Characteristics of good questions

124

### Why? To maintain rapport

- ▶ Relevant to issue and person's ability to contribute to the interview
- ▶ Respectful - not embarrassing or oppressive.
- ▶ Sensible - seek new information or testing earlier information.
- ▶ Sensitive to person's state and ability to understand
- ▶ Single issue - one question at a time.
- ▶ Short and concise
- ▶ Simple and clear
- ▶ Sincere and not misleading or deceitful

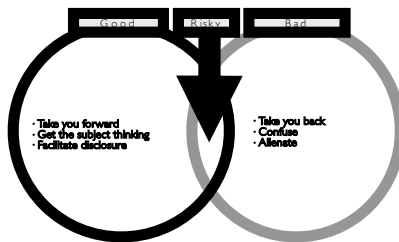


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## Good, bad and risky questions

125

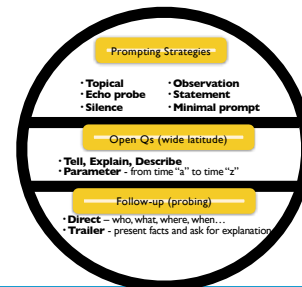


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## Good questions

126



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## Bad questions

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## Bad questions

128

### Avoid if possible.

- ▶ Leading, forced choice, filling the pause, marathon, hypothetical, etc.

### If used, use with caution.

- ▶ These might increase risk of false confession.
- ▶ Make sure process will be perceived as voluntary.



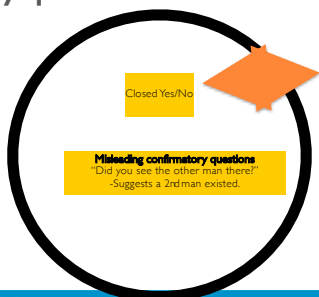
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## Risky questions

129



**Closed Yes/No**

**Misleading confirmatory questions**  
"Did you see the other man there?"  
-Suggests a 2nd man existed.

You can pose an appropriate Q to develop the 'yes' or 'no' with a subsequent, productive question.

Example:  
Q: "Did you hear her say 'stop'?"  
A: "Yes"  
Q: "Tell me about that?"

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## Pausing

130

**Key messages from pausing**

- ▶ Turn to talking is passed to the interviewee
- ▶ No pressure to respond, take time to think
- ▶ You are prepared to wait and will not fill the pause

**Pausing benefits the interviewee**

- ▶ Give person time to think
- ▶ You will keep the promise of your contract

**Pausing benefits the interviewer**

- ▶ Allows you to concentrate and focus
- ▶ Attend to fine details of disclosed information
- ▶ Attend to the subjects emotions
- ▶ Identify topics to be reviewed and how you will approach it.



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## Pausing

131

**Longer pauses create greater pressure to speak**

- ▶ 2 to 3 seconds is a natural break. Each second adds pressure. 5 seconds is not perceived as pressuring by many.
- ▶ 7 seconds and more is sensed as pressuring.

**Pauses can vary with the type of question**

- ▶ A complex process – long recall question requires appreciable mental effort and will require a longer pause.
- ▶ A simple recall should not need a long pause. If it extends into the unreasonable, consider a polite probe such as "I'm listening."

**Very long silences**

- ▶ Interviewer's responsibility to assess effects of pause and adjust.
- ▶ Don't become stubborn at the risk of losing rapport.



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## Probing risks

132

**Persistent questioning comes in two flavors**

- ▶ **Positive persistence:** doing your job in a thorough manner in spite of the person being uncooperative or obstructive.
- ▶ **Negative persistence:** repeated question has turned into badgering and is unreasonable.
- ▶ Always consider you may be asked 'why'



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## No pausing

133

### Absence of pause and quick paced interview

- ▶ Rapid questioning is a poor interview tactic
- ▶ Rapid questioning used to control the interview
  - ▶ Liars are happy to let this happen, never answering.
  - ▶ Truthful become frustrated and conditioned to silence.
- ▶ Interviewee concludes
  - ▶ Interviewer did not keep the promise from the contract.
  - ▶ Interviewer is not interested in my account.
  - ▶ Might feel "less is best" and keep quiet.
- ▶ Consider how interviewer looks on video (bully?)

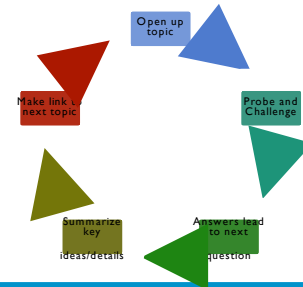


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## Probing

134

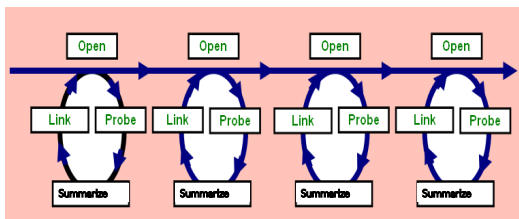


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## Probing: interview spiral

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## Probing strategy

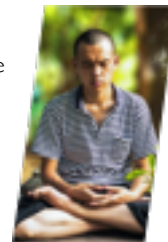
136

### Concentrate on the free narrative

- ▶ Pick a section, event or episode where the big issues emerged

### Focus on a material fact

- ▶ Person, location, or object



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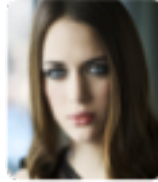
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## Probing risks

137

### Reasons to probe

- ▶ **Positive:** To resolve anomalies through expansion or explanation
- ▶ **Negative:** to induce the interviewee to give responses that fit your perspective on matter: potential oppression!
- ▶ Potential claim of false admission or confession.



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## Don't summarize

138

### Where there is too little detail.

- ▶ You might sound like a parrot repeating back what they said—which is grating and unproductive.

### After a short sequence of responses

- ▶ Could lead the interviewee to think you can't remember details.
- ▶ It sounds odd.

### When the interviewee gives detail that is contradictory to earlier detail.

- ▶ Summarizing might alert the subject.



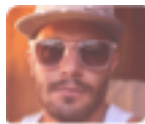
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## Inappropriate or disruptive behavior

139

- ▶ Disruptive talking and poor listening.
  - ▶ Over-talking
  - ▶ Dismissing or ignoring what you say
  - ▶ Finishing your sentence
  - ▶ Any disruptive behaviors that thwart a conversation.
- ▶ Is it due to poor interpersonal skills?
  - ▶ Exacerbated by stress brought on by the interview process
- ▶ Or, is it a conscious act to control the direction of the interview?



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## Dealing with disruptive behavior

140

- ▶ Don't reward disruptive / inappropriate behavior.
- ▶ However, if you respond immediately and every time, you may be perceived as over-sensitive.
- ▶ Collect evidence of a pattern of response (three times or so).



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## Dealing with disruptive behavior

141

- ▶ **Describe the behavior:** "I'm sorry but I need to point out that when I ask you a question... you keep interrupting me."
- ▶ **Explain the effects** of the behavior: "These interruptions make it difficult to continue. ... It will take longer to cover these issues. ... if you continue."



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## Dealing with disruptive behavior

142



- ▶ **Action required:** "Please don't interrupt me when I am talking. ... Allow me to finish. ... I will extend you the same courtesy."
- ▶ **Likely Consequences:** "If you continue interrupting after my repeated requests. ... I will have no option other than to (indicate consequence) and state so on the recording."

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## Dealing with disruptive behavior

143

- ▶ Implement the consequences if the behavior reoccurs after the last warning.
- ▶ Don't take it personally.
- ▶ Don't react inappropriately or with anger.
- ▶ Stop the interview.
- ▶ Take the action you promised.



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## Resistance

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**Resistance is not the same as disruptive behavior:**

**Might include...**

- ▶ Evasion
- ▶ Sabotaging behavior
- ▶ Derogatory remarks and comments
- ▶ Saying nothing



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## Two dimensions of resistance

145

### Willingness or unwillingness to talk.

- ▶ Unwillingness may stem from anger, fear, stress, or distress. May stem from not wanting to disclose culpability.

### Ability or inability to tell.

- ▶ Inability can arise due to person not having the information you seek or they don't remember or they were never there or the information was not perceived.
- ▶ Inability to tell can also arise from a desire to not admit culpability.

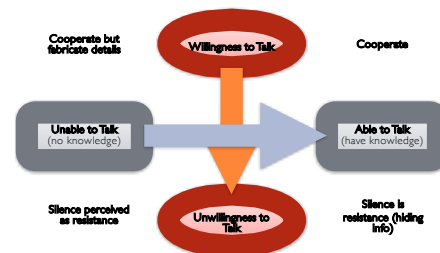


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## Dimensions of resistance

146



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## Coping with resistance

147

- ▶ Interviewee is silent, but why?
- ▶ Keep your cool, don't rush to respond.
- ▶ Pause, breathe slowly, calm down.
- ▶ The person might talk to fill the void.
- ▶ Ask good questions.
- ▶ Second hypothesis – maybe the person doesn't truly know?



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## Coping with resistance

148



- ▶ Remain open-minded.
- ▶ Don't let bad behavior cause bad judgment.
  - ▶ There are 2 dimensions to the resistance.
  - ▶ The person may not have what you seek.
  - ▶ Their manifested emotionality may prevent them from responding rationally.

*If the interviewee remains silent after a few attempts to get information, you should probably take a break on a friendly note but promise to return to discuss later.*

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## Coping with resistance

149

### Use similar strategies with other evasive techniques

- ▶ Pass the buck – "You should ask my co-workers about that, not me."
- ▶ Blanking or single word responses.
- ▶ Anguing or put downs – "Yeah, you must be a new."
- ▶ Hold your tongue, don't react; it is a deflection.
- ▶ Ex: OK... I'll ask the question again ...  
Take your time... Think before you speak... Please tell me about...



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## Summary

## Summary

151

- ▶ Good first impression
- ▶ Personalize the interview
- ▶ Establish rapport
- ▶ Explain the purpose of the interview
- ▶ Need for concentration
- ▶ Good, bad and risky questions
- ▶ Other productive questions
- ▶ Use of pauses
- ▶ Don't interrupt interviewee
- ▶ Resistance and disruptive behaviors



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## Summary

152

- ▶ Rapport-building interviewer behavior
- ▶ Interviewee-compatible questioning
- ▶ Interviewee can say "I don't know"
- ▶ Interviewee can say "I don't understand"
- ▶ Interviewee should not fabricate or guess
- ▶ Initiate a free narrative/account



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## Summary

153

- ▶ Activation and probing of an image
- ▶ Systematic probing of topics
- ▶ Echo probing
- ▶ Active listening
- ▶ Summarizing



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## Summary

154

- ▶ Seating arrangements
- ▶ Note-taking
- ▶ Mutual gaze / eye-contact
- ▶ Querying and clarification
- ▶ Mirroring / synchrony
- ▶ Sketch drawings and visual aids
- ▶ Challenging the account
- ▶ Clarification of inconsistencies



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## Summary

155

- ▶ Friendliness, patience, support and praising interviewee efforts
- ▶ Report everything (RE)
- ▶ Transfer control (TC)
- ▶ Context reinstatement (CR) - focus on all senses
- ▶ Varied and extensive retrieval
- ▶ Try reverse order (RO)
- ▶ Change perspectives (CP)



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## Closing thoughts

156



- ▶ A knowledge of how conversation works is fundamental to professionalism in interviewing.
- ▶ Conversational skill and the skilled management of conversation are essential to ethical and effective interviewing.
- ▶ Realize there are limitations to human memory.

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Thank you!

